

26STCV01234 26STCV01234

County: los-angeles

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Defendant's Reply Evidence

In general,

for due process reasons, the moving party generally may not rely on additional evidence filed with its reply papers. (San Diego Watercrafts, Inc. v. Wells Fargo Bank, N.A. (2002) 102 Cal.App.4th 308, 316.) Evidence filed for the first time in a reply may violate the opposing party's due process rights if considered by the Court. (Ibid.) Thus, evidence and exhibits presented in support of a reply are not generally allowed.

(Nazir v. United Airlines, Inc. (2009) 178 Cal.App.4th 243, 249.) However, it is reversible error for the Court to refuse to consider authenticating evidence in reply for a motion to compel arbitration when the opposing party puts the authentication of a signature at issue in the opposition. (Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1060.)

In

opposition, Plaintiff asserts that Defendant has failed to sufficiently authenticate his electronic signature on the Arbitration Agreement. In reply, Defendant includes the declarations of Annette Tully and Clider Martinez to authenticate Plaintiff's electronic signature on the Arbitration Agreement.

Though Plaintiff preemptively objected to any evidence submitted with the reply, it would be reversible error for the Court not to consider such evidence. (Espejo, supra, 246

Cal.App.4th at p.1060.) This is because

"a petitioner [moving to compel arbitration] is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter in moving for arbitration or in the event the authenticity of the signature is

not challenged.” (Ruiz v. Moss Bros.

Auto Group, Inc. (2014) 232 Cal.App.4th 836, 846 [italics in original].) It is only after Plaintiff “challenged the validity of [his] signature [on the Arbitration Agreement] in his opposition [that] [Defendant] [is] then required to establish by a preponderance of the evidence that the signature was authentic.” (Espejo, supra, 246 Cal.App.4th at p.1060.)

To

eliminate any prejudice to Plaintiff, the Court will offer Plaintiff at the outset of the September 17, 2026 hearing on the instant motion to compel arbitration a continuance to afford Plaintiff an opportunity to file responsive evidence and briefing . (Jay v. Mahaffey

(2013) 218 Cal.App.4th 1522, 1538 [“[I]f [reply evidence is] permitted, the other party should be given the opportunity to respond.”].) Plaintiff should be prepared to inform the Court whether Plaintiff wishes to request a continuance to file additional briefing and evidence in response to Defendant's reply evidence